IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Appeal in terms of Article 138(1) of the Constitution.

Court of Appeal Case No. - CA/PHC/207/2018

HC (Trincomalee) Case No. - HCT/REV/520/2018

MC (Kantale) Case No. - PC/54972/2017

Vallipuram Ratnasababathy Lohanantham,
No.132/09,
College Road, Trincomalee.

His Power of Attorney Holder
Vallipuram Ratnasababathy Somananthan,
No.11/34, Thakkiya Road,
Trincomalee

1st Party

Vs.

1. Chinnaiyah Ramachandiran
No.142, Main Road,
Trincomalee.

2. Dhanalaxmy Ratnarajah,
No.142, Main Road,
Trincomalee.

2nd Party

And between

Vallipuram Ratnasababathy Lohanantham,
No.132/09,
College Road, Trincomalee.

His Power of Attorney Holder
Vallipuram Ratnasababathy Somananthan,
No.11/34, Thakkiya Road,
Trincomalee

1st Party - Petitioner

Vs.

1. Chinnaiyah Ramachandiran
No.142, Main Road,
Trincomalee.

2. Dhanalaxmy Ratnarajah,
No.142, Main Road,
Trincomalee.

2nd Party - Respondents

And now between

1. Chinnaiyah Ramachandiran
No.142, Main Road,
Trincomalee.
(Deceased)

2nd Party – Respondent - 1st Appellant

2. Dhanalaxmy Ratnarajah,
No.142, Main Road,
Trincomalee.

2nd Party – Respondent – 2nd Appellant

Vs.

Vallipuram Ratnasababathy Lohanantham,
No.132/09,
College Road, Trincomalee.

His Power of Attorney Holder
Vallipuram Ratnasababathy Somananthan,
No.11/34, Thakkiya Road,
Trincomalee

1st Party – Petitioner- Respondent

Before:	Damith Thotawatte, J. K.M.S. Dissanayake, J.
Counsels:	Rudane Zahir with Janeef Rizy for the 2nd Party Appellant. K.S. Ratnavel for the Petitioner – Petitioner – Respondent.
Argued:	01.09.2026
Written submissions tendered on:	09.07.2024 for the Appellants. 20.02.2025 for the 1st Party-Petitioner-Respondent.
Judgment Delivered:	03.11.2026

Thotawatte, J.

Introduction

The 2nd Party-Respondents-Appellants (hereinafter sometimes referred to as the "Appellants") appeal against the order dated 26.09.2018 of the learned High Court Judge of the Eastern Province holden in Trincomalee in HCT/REV/520/2018. In that order, made in the exercise of revisionary jurisdiction under Article 154P(3)(b) of the Constitution, the learned High Court Judge set aside the order dated 20.02.2018 of the learned Magistrate of Kantale, acting as Primary Court Judge under the Primary Courts' Procedure Act, No. 44 of 1979 (hereinafter sometimes referred to as the "PCP Act"), in case No. PC/54972/2017. The learned High Court Judge also directed that the 1st Party-Petitioner-Respondent (hereinafter sometimes referred to as the "Respondent") be restored to possession.

The Petition of Appeal cites Article 138(1). This Court treats the appeal as one under Article 154P(6) read with Article 138, and no prejudice arises from the misdescription. The 1st Appellant having passed away during the pendency of this appeal, the 2nd Appellant has been substituted as the 1(a) Appellant.

Factual Matrix

The Respondent resides abroad. He acts through his brother, Vallipuram Ratnasabapathy Somananthan, as his Power of Attorney holder. The Respondent claims to own a 14-perch portion of a land called "Vithanaiyar Valavu", bearing assessment No. 72, Kovil Road, Kantale. He identifies it as Lot 3 of Plan No. 228 dated 31.12.2005 (annexed marked as "P2"), and claims title under Deed of Gift No. 261 dated 01.01.2006 (annexed marked as "P3"). He states that the land is fenced and that his sister, who lives in Kantale, looks after this land for him.

In his affidavit dated 09.10.2017, filed as information under section 66(1)(b) of the PCP Act, the Respondent stated as follows:

- On 19.06.2017, at about 8.00 a.m., the 1st Appellant, Chinnaiah Ramachandran (since deceased), and the 2nd Appellant, Dhanalaksmi Ratnarajah, entered the land with three labourers and began to clear it.
- The same day, the Respondent's family informed the police, who came to the land. After an inquiry at the Kantale Police Station that afternoon, the police directed the Appellants not to enter the land without the order of a competent court.
- On 21.06.2017, the police referred both parties to the Assistant Commissioner of Lands, Kantale, to identify the owners of the land.
- On 28.08.2017, contrary to the police direction, the Appellants entered the land again and unloaded a tractor load of granite on it. The Respondent's Power of Attorney holder complained to the police (the police complaint annexed marked as "P7").

The Appellants dispute the Respondent's claim. They contend that the land forms part of "Kudiyiruppu Valavu", 22 perches in extent, which they hold under Deed of Donation No. 978 dated 21.10.1948 (annexed marked as "R1"). They produced an unsurveyed sketch of that land (annexed marked as "R7"). They further contend that they and their predecessors have possessed the land since about 1940, and they rely on documents submitted by them as "R8" to "R13" to prove that possession. They deny that any breach of the peace was threatened.

Progression of Litigation

Proceedings Before the Primary Court and the Result

The Respondent instituted proceedings in the Primary Court of Kantale by filing information by way of an affidavit under section 66(1)(b) of the PCP Act on

09.10.2017. The Appellants filed their affidavits on 09.11.2017. After both parties had filed their counter-affidavits and written submissions, the learned Primary Court Judge, by order dated 20.02.2018, refused the relief sought by the Respondent and dismissed the information on the following grounds:

- The land in dispute could not be identified. The Respondent and the Appellants gave conflicting names, boundaries and assessment numbers for it.
- Although the Respondent complained of a forcible entry by the Appellants on 19.06.2017, information was filed only on 09.10.2017. That entry fell outside the two months before the information, so section 68(3) did not apply.

Proceedings Before the Provincial High Court

On 15.05.2018, being dissatisfied with the order of the learned Magistrate, the Respondent applied to the Provincial High Court of Trincomalee in revision. The Respondent contended that the two-month period must be counted back from 09.10.2017 and that he was dispossessed on 28.08.2017, when the Appellants unloaded the granite. He further contended that his surveyed plans identified the land and that the Primary Court had wrongly refused his request for a surveyor's commission and a site inspection.

The Appellants filed objections on 18.06.2018. They contended that the Respondent's petition did not comply with Rule 3(2) of the Court of Appeal (Appellate Procedure) Rules, 1990, disclosed no exceptional circumstances, and was belated. On 26.09.2018, the learned High Court Judge held that the Respondent had established his possession, his dispossession and a threat to the peace. Analysing the Respondent's title documents "under section 69(2)", he held that the Respondent had established a right to possession. He set aside the Primary Court order and directed that the Respondent be restored to possession.

Grounds of Appeal

The Appellants being aggrieved by the order dated 26.09.2018 of the High Court Judge of Trincomalee, the Appellants lodged a Petition of Appeal against that order.

The grounds of appeal are as follows:

a) The order is contrary to the evidence and the law, as the material proving that the Appellants and their predecessors had been in possession of the land since about 1940 was not considered, and the Respondent produced nothing to prove his own possession. The Appellants further contend that relief under section 68(3) was not available to the Respondent, as the Respondent's own

affidavit placed the forcible entry on 19.06.2017, more than two months before the information was filed on 09.10.2017.

b) The High Court ignored the inspection of the land by the learned Primary Court Judge who had the benefit of personal observations when making his order.

c) The Respondent's revision petition disclosed no exceptional circumstances warranting the exercise of revisional jurisdiction and established no illegality, impropriety or procedural irregularity in the order of the Primary Court. In setting that order aside, the learned High Court Judge did not identify the particular finding or procedural step that disclosed such a defect, or explain why the Primary Court's dismissal of the information could not stand.

In their written submissions, the Appellants advance two further contentions:

d) The learned High Court Judge did not rule on their preliminary objections. These were that the Respondent's petition lacked the averment required by Rule 3(2) of the Court of Appeal (Appellate Procedure) Rules, 1990, that it disclosed no exceptional circumstances, and that it was belated.

e) The learned High Court Judge misdirected himself in law by holding that the Respondent had established possession and dispossession under section 68, contrary to the Respondent's own affidavit, and by applying section 69 to a dispute concerning possession, although that section applies only to rights other than the right to possession.

The Statutory Scheme Under Section 66 and the Nature of the Inquiry

Section 66 of the Primary Courts' Procedure Act, No. 44 of 1979, provides a summary and preventive procedure for resolving disputes affecting land where a breach of the peace is threatened or likely. Proceedings may be initiated by a police officer furnishing information under section 66(1)(a), or by a private party filing information by affidavit under section 66(1)(b). Upon receiving such information, the Primary Court has jurisdiction under section 66(2) to inquire into the dispute and make the determination or order authorised by Part VII. The inquiry is directed to preserving the peace, not finally deciding ownership or title[1]. In a dispute over possession, the Court must apply section 68; a dispute concerning another right in or over land falls under section 69. Where the dispute relates to possession, section 68(1) requires the Primary Court Judge to determine who was in possession on the date the information was filed. Under section 68(3), a direction for restoration on the ground of forcible dispossession may be made only where the judge is satisfied that a person in possession was forcibly dispossessed "within a period of two months immediately

[1] *Kanagasabai v. Mylvaganam* (1976) 78 NLR 280, at 283.

before the date on which the information was filed". Section 69 applies only to rights "other than the right to possession", such as servitudes. Any determination is provisional and leaves the parties' substantive rights to be determined by a competent court[2]. The inquiry is summary (section 67) and is confined to the material described in section 72. Because section 74(2) bars an appeal, the order is open to challenge only in revision.

Exceptional Circumstances in Revision

The requirement of exceptional circumstances is not expressly stated in the Act, but is a settled condition for invoking revision, which is an extraordinary and discretionary remedy. The circumstances must be specifically pleaded and established; merely describing a complaint as "exceptional" is insufficient. The petitioner should demonstrate manifest illegality, impropriety, a fundamental error of law, a material procedural irregularity, or an error causing a grave miscarriage of justice. An ordinary error, or disagreement with the Primary Court's assessment of the evidence, will not by itself suffice[3]. The absence of a right of appeal is a relevant circumstance, but it does not relieve the petitioner of that burden[4].

Duty of the High Court and the Court of Appeal

In exercising revisionary jurisdiction over an order made under Part VII, the High Court must determine whether the Primary Court acted within its jurisdiction and according to law. It should consider the grounds advanced, address any material alleged error, and give reasons sufficient to show why revision is or is not warranted. Revision does not permit a fresh inquiry into the merits or the substitution of the High Court's view of the evidence merely because another view is possible; intervention may be justified where the Primary Court misdirected itself in law, failed to consider material evidence, or did not perform a statutory duty. On appeal, the Court of Appeal examines the correctness, legality and propriety of the High Court's exercise of revisionary jurisdiction; it does not rehear the original dispute or re-evaluate the Primary Court evidence as if exercising an ordinary appeal[5].

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[2] *Velupillai and Others v. Sivanathan* [1993] 1 Sri LR 123; *Punchi Nona v. Padumasena and Others* [1994] 2 Sri LR 117.

[3] *Dharmaratne and Another v. Palm Paradise Cabanas Ltd. and Others* [2003] 3 Sri LR 24; *Siripala v. Lanerolle and Another* [2012] 1 Sri LR 105; *C.G.H. Ramniya Kumari v. K.D. Ninecias*, CA/PHC/140/2010, decided 14.12.2016; *Aysha Hameed and Another v. Mohomed Mohideen Shaul Hameed and Others*, CA/CPA/13/2021, decided 02.03.2023.

[4] *Rustom v. Hapangama* [1978-79-80] 1 Sri LR 352.

[5] *Nandawathie and Another v. Mahindasena* [2009] 2 Sri LR 218; *Pathmanaban Gandini v. Muthupillai Karunanithy*, CA/PHC/71/2020.

Analysis

Preliminary Objections

The objection that the revision petition omitted an averment as to whether the jurisdiction of the High Court had previously been invoked is misplaced. Rule 3(2) requires an averment as to whether the jurisdiction of the Court of Appeal had previously been invoked in respect of the same matter. Whether the failure to make such an averment warrants dismissal depends on the circumstances and the procedural context of the application. The learned High Court Judge has cited ***Jayatilake v. Ratnayake***[6] for the proposition that, where no alternative remedy is available, the applicant need not show exceptional circumstances but must establish illegality or procedural impropriety in the impugned order. The revision application was filed within three months of the order, which does not constitute undue delay. As such, none of the objections would have warranted dismissal *in limine,* and the learned High Court Judge's failure to address them separately cannot be considered fatal.

Inspection

The appellants' petition to the Court of Appeal says the Magistrate's order was made "pursuant to an inspection of the land." However, it gives no date or details of the inspection, and the Magistrate's written order does not mention a site visit or findings from one. Accordingly, this ground is rejected.

Applying Section 69 to a Dispute Concerning Possession

The impugned order reproduces submissions and case law and then states bare conclusions. It does not identify any act of dispossession or its date, and it makes no finding that a dispossession occurred between 09.08.2017 and 09.10.2017. That finding is the indispensable foundation for a direction for restoration under section 68(3). The order does not engage with the reasoning of the Primary Court. Although the learned High Court Judge refers generally to the Petitioner's supporting documents, he does not identify which particular documents establish the Respondent's possession or explain how they establish the identity of the disputed land.

Above all, the learned High Court Judge decided a pure possession dispute under section 69 by evaluating title deeds. Section 69 has no application to the right to possession. The evaluation of title is the very inquiry that ***Kanagasabai***[7] and ***Ramalingam***[8] exclude and the impugned order of the learned High Court Judge cannot stand.

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[6] [2007] 1 Sri L.R. 299.
[7] *Kanagasabai v. Mylvaganam*, (1976) 78 NLR 280, at 283.
[8] *Ramalingam v. Thangarajah* (1982) 2 Sri LR 693.

Applicability of Section 68(3)

In his written submissions to this Court, the Respondent asserted that, on 28.08.2017, the Appellants dispossessed him by unloading building materials to erect a building, and identified that as the date of actual dispossession. In the revision petition, however, he described the unloading of granite on that date as an attempt to take physical possession. Further, in information filed with the Magistrate's Court, the Respondent describes the second incident as the Appellants having **"**again trespassed into the disputed land**"** and unloaded a tractor-load of granite. In the prayer, he asks the Court to order the granite's removal, identifying 28.08.2017 as the date it was unloaded. The Respondent's subsequent characterisation of the incident as dispossession is not clearly reflected in the information originally filed before the Primary Court. Although the learned Magistrate had treated the forcible entry on 19.06.2017 as the relevant incident for the purposes of section 68(3) and concluded that the information had been filed outside the statutory period, the learned High Court Judge appears to have ignored these issues by holding, in general terms, that the Petitioner had established dispossession and ordering restoration of possession.

Identification of the Corpus

Although the first party alleged that a breach of the peace was threatened or likely, the second parties disputed that assertion. The learned Magistrate rejected their objection and found that a threat to the peace appeared to exist. He nevertheless terminated the inquiry without determining under section 68(1) who was in possession of the land on the date the information was filed or making the corresponding order under section 68(2) prohibiting disturbance, on the basis that the corpus could not be identified. He separately held that restoration under section 68(3) was unavailable because the information was filed more than two months after the alleged dispossession. The information was therefore dismissed without a positive determination of entitlement to possession for the time being, notwithstanding the finding that a breach of the peace appeared to be threatened or likely.

The learned Magistrate held that the identity of the corpus was not established as the parties gave the land different names, deed P3 referred to an amalgamation of two lands, and the plans and other documents showed differing boundaries. He also noted the discrepancy between assessment No. 72, Kovil Road, and assessment No. 96 appearing in "R13", and recorded the respondent's contention that the survey request reflected uncertainty about the boundaries. He therefore concluded that he could not make an order under section 68(1).

I am unable to accept the reasons advanced by the learned Magistrate, particularly in view of the police intervention at the disputed land and the observations recorded in the material placed before the Court.

The learned High Court Judge also failed to make a separate, reasoned finding identifying the corpus. He states that the Petitioner had established possession, dispossession and a breach of the peace, and that he had considered the Petitioner's supporting documents. He nevertheless concluded, without identifying the land to which those findings related, that the Petitioner had established a right to possession of "the disputed land."

The order does not explain how the documents resolved the parties' competing descriptions of the land or established its boundaries. Although the order refers to the Respondent's description of the land, the learned High Court Judge does not state whether he accepted that description as identifying the corpus or explain how it was reconciled with the competing descriptions.

Conclusion

Proceedings under section 66 of the Primary Courts' Procedure Act, No. 44 of 1979, are summary and preventive in nature. They do not finally determine the parties' civil rights, which remain for determination by a competent court. The Primary Court must nevertheless determine the matter before it in accordance with the applicable provisions of the Act and make the order warranted by its findings, with a view to preventing a breach of the peace pending such determination. In the present case, both the learned Magistrate and the learned High Court Judge misdirected themselves in their approach to the matter. Neither order can therefore be allowed to stand.

The order of the Provincial High Court of the Eastern Province, holden at Trincomalee, dated 26.09.2018 in HCT/REV/520/2018, including the direction for restoration of possession, and the order of the Magistrate's Court of Kantale dated 20.02.2018 in PC/54972/2017 are set aside.

The Registrar of this Court is directed to transmit the record, together with a copy of this judgment, to the Magistrate's Court of Kantale for reconsideration of the matter and the making of an appropriate order in accordance with law. Having regard to the time elapsed since the information and affidavits were filed, the learned Magistrate

may, in his discretion and after hearing the parties, call for further affidavits, if necessary, subject to the provisions of Part VII of the Act.

Under the circumstances, no order is made as to costs.

Judge of the Court of Appeal

K.M.S. Dissanayake, J.

I agree

Judge of the Court of Appeal